

Calendar Line 3

Case Name: *Dorothy Ramirez et al. v. Suzanne Ramirez et al.*

Case No.: 21CV391604

This is a motion by plaintiffs Dorothy Ramirez and Jonathan Ramirez for a protective order to limit the number of special interrogatories and requests for admissions (“RFAs”) by the other side.

Defendant Suzanne Ramirez (now known as Suzanne Rodda) propounded 264 special interrogatories and 97 RFAs on Dorothy Ramirez, and she propounded 270 special interrogatories and 89 RFAs on Jonathan Ramirez. Normally, in an “unlimited” civil case, the presumptive limit for special interrogatories and RFAs is 35 of each per party, and so these numbers are quite extreme. Although a litigant may go beyond the presumptive limit if there is good cause to do so, the circumstances here do not support going more than seven and a half times beyond a typical civil case (for interrogatories) and nearly three times beyond for RFAs. The court finds that the burden or expense of responding to these special interrogatories and RFAs “clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.020, subd. (a).)

Plaintiffs argue that there is not much to be learned, if anything, through these discovery requests (Memorandum, p. 4:9-12), and the court agrees. This case is over three and a half years old; the parties have already engaged in extensive discovery and motion practice; and this is not a complex case. The special interrogatories were apparently drafted by mechanically going through each factual allegation in the complaint and then asking the same questions about that allegation. Although a party is certainly entitled to ask contention interrogatories, the foregoing rote approach does not reflect a thoughtful and judicious use of the discovery tools at a party’s disposal.

In response to the motion, defendant fails to provide any explanation as to why 361 interrogatories and RFAs are needed (or even potentially useful) as to Dorothy Ramirez, and why 359 interrogatories and RFAs are needed or useful as to Jonathan Ramirez. In fact, defendant’s primary argument appears to be that plaintiffs already provided unverified answers to these requests, so it must not have been unduly burdensome to respond to them. But defendant does not concede that plaintiffs’ answers are sufficient—in fact, she suggests that further meet-and-confer discussions are necessary to “finalize them”—and so this argument is of little consequence. (Opposition, p. 3:7-8.)

In the end, because of a failure to even attempt to justify this many requests on the part of defendant Rodda, the court is left with the overriding impression that defendant (or her counsel) has been using written discovery to overwhelm plaintiffs with volume rather than trying to advance the truth-seeking purpose of written discovery.

For the foregoing reasons, the court GRANTS the motion and orders that defendant be limited to propounding 35 special interrogatories and 35 RFAs to each plaintiff.

Finally, the court notes that plaintiffs have requested \$4,060.00 in monetary sanctions—\$2,400 for the opening brief, \$60 for the filing fee, and \$1,600 for the reply brief. The court finds this amount to be excessive, given the straightforward nature of this motion. The court will instead order monetary sanctions of **\$1,660.00** (representing four hours at

\$400/hour plus the \$60 filing fee) against defendant and her counsel (jointly and severally). This amount must be paid within 30 days of notice of entry of this order. The court finds that defendant (or her counsel) did not act with substantial justification in pursuing this discovery and in opposing this motion. As a reminder, the purpose of discovery sanctions is compensatory, not punitive.

The motion for protective order is GRANTED. Plaintiffs' request for monetary sanctions is GRANTED IN PART. Defendant's request for sanctions is DENIED.

It is so ordered.

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